which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (*Ibid.*) Therefore, this action is stayed pending the completion of arbitration.

2.

CASE #	**CASE NAME**	**HEARING NAME**
CVME2512835	WHITTED VS INLAND REGIONAL CENTER	MOTION TO STRIKE 1ST AMENDED PETITION

Tentative Ruling: Hearing Required.

3.

CASE #	**CASE NAME**	**HEARING NAME**
CVME2511863	WHITTED VS COASTAL DEVELOPMENTAL SERVICES FOUNDATION	DEMURRER ON 1ST AMENDED PETITION FOR WRIT OF MANDATE

Tentative Ruling: Hearing Required.

4.

CASE #	**CASE NAME**	**HEARING NAME**
CVME2511863	WHITTED VS COASTAL DEVELOPMENTAL SERVICES FOUNDATION	MOTION TO STRIKE 1ST AMENDED PETITION FOR WRIT OF MANDATE

Tentative Ruling: Hearing Required.

5.

CASE #	**CASE NAME**	**HEARING NAME**
CVME2510328	MARSHALL VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEE

Tentative Ruling: Motion for Attorney's Fees granted in the reasonable amount of $27,696.50 and Costs of $2,559.80.

Plaintiff moves for attorney fees consisting of $29,114.50, with a 1.2 multiplier of $5,822.90 for a total of $34,937.40, and costs of $2,559.80. The parties resolved the case at mediation. He argues he is the prevailing party and is entitled to counsel's lodestar. He argues that the hourly rates and time spent are reasonable. He argues that a 1.2 multiplier should be granted based on the contingent risk of the case, the exceptional settlement, and the delay in payment. He also argues he is entitled to time on this fee motion.

In opposition, Defendant contends that the fees are unreasonable for the fact that this case settled in six months. It argues that the hourly rates and time spent are high, in light of the fact that there was only two depositions, initial disclosures, and no vehicle inspections. It asserts that the hourly rates are not supported by evidence and not supported for a simple case. It challenges unreasonable and duplicate billing entries, and estimated fees for the motion are unreasonable. It argues the court should issue a negative multiplier is warranted.

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co*. (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id*.) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

The hourly rates for Kaufman and Sanchez are high for 2026. The court reduces the rates to 2025 rates. As for Lopez, the court awards $150.

Defendant then challenges certain entries. The court finds the following entries to be excessive and reduces as follows:

6/20/25 and 6/30/25: Kaufman spent .6 and .6 hours reviewing the sales contract and transaction documents, along with warranty coverage. This is a typical lemon law case. The court reduces .6 hours.

1/16/26: Lopez spent .6 hours drafting and serving a third amended deposition notice. This is excessive. The court deducts .5 hours.

All other entries Defendant challenges are reasonable. Accordingly, the court awards:

Attorney	Hourly Rate	Hours	Total
Kaufman	$595	11.9	$7,080.50
Sanchez	$375	52.5	$19,687.50
Lopez (paralegal)	$150	3.2	$538.50
Bei (law clerk)	$195	2.0	$390.00
TOTAL		69.6	$27,696.50

The court finds no basis for a multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights…into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4t h 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id*. at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id*. at 1138.)   There is no basis for an enhancement. This is merely double billing. Again, this was not a complicated case. As to the skill, again, there was no exceptional quality of work in this case to justify a multiplier.

As for costs, Plaintiff appropriately filed a memorandum of costs. (Cal. R. Ct. 3.1700.) Defendant did not file a motion to tax costs and cannot challenge costs via opposition to this motion.